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# Academic Freedom Ruling Upheld at UBC

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The B.C. Labour Relations Board has upheld an arbitrator's ruling that the University of British Columbia cannot require a professor to relinquish copyright ownership in her course material.

In February 2004 arbitrator James Dorsey found in favour of the UBC faculty association grievance challenging the right of the university to demand that Mary Bryson transfer rights to course material to the university.

"The original arbitrator's ruling was a landmark victory for academic freedom and faculty rights," said UBC faculty association president Elliott Burnell "When the administration appealed the ruling to the provincial Labour Relations Board, we were determined to see the arbitrator's decision upheld."

The faculty association's persistence was vindicated on all counts by the labour board, which rejected each of the university's five grounds of appeal.

"Academic staff across Canada owe a debt of gratitude to UBC's faculty association and professor Bryson, the original grievor," said CAUT president Loretta Czernis "The decision strengthens everyone's academic freedom and intellectual property rights."

The labour board’s decision marks another victory in a recent string of legal successes by the faculty association, including a B.C. Supreme Court ruling upholding a promotion grievance and a human rights tribunal decision affirming the association’s right to publicly comment on controversial issues before the court.

*Related article: “Landmark Academic Freedom Decision at UBC,” Bulletin, April 2004, available online.*

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